

Orders on Objection

This Execution Petition filed by the DHRs on the basis of the award passed in L.A.C. No.39/2016 on the file of the Senior Civil Judge and JMFC, Kanakapura.

The JDr filed objections to this Execution Petition stating that this Execution Petition at this juncture is not maintainable either in law or on facts. Further contended that there is a dispute between the parties regarding the land in Sy. No. 356 measuring 7 acres 34 guntas of Chilluru village and the suits in O.S. No. 164/2013 and 174/2013 are pending between parties and rights of the parties not disposed off and also the JDr challenged the Judgment and Award passed in L.A.C. No. 39/2016 before the Hon'ble High Court of Karnataka in MFA No. 915/2023 which is still pending for consideration. Accordingly prayed for dismissal of the petition.

On that basis the point for consideration is as under:

“Whether the objection raised

by the JDr is sustainable under law?"

Heard the arguments. Perused the materials on records, on that basis, my finding on the above point is in the affirmative, for the following:

REASONS

Point: Undisputedly this Execution Petition is passed on the basis of the Judgment and Award in L.A.C. No. 39/2016. The reference made in L.A.C. No. 39/2016 is under Section 18 of the Land Acquisition Act in respect of property in Sy. No. 356 measuring 3 acres of land situated at Chilluru village, Maralavadi Hobli, Kanakapura Taluk. The award passed in L.A.C. No. 39/2016 has been produced before this Court, wherein, at 6th paragraph in page No.2 reads as that:

"Further it is ordered and awarded that the respondents are directed to pay Rs.39,00,000/- per acre amount as determined in the meeting in favour of claimants or persons who entitled to receive the same after obtaining judgment and decree in pending civil suits as well as land acquisition proceedings under Sections 30 and 31 of Land Acquisition Act."

Admittedly while passing the Judgment and Award, the Court made it clear that the decree holders are entitled to receive the compensation amount after obtaining the Judgment and Decree in pending civil suits as well as land acquisition proceedings under Sections 30 and 31 of Land Acquisition Act. The said portion of the award clearly reveals that there is a dispute between DHRs and others regarding apportionment of compensation amount. The affidavit filed in support of Execution Petition by decree holder No.1 Madaiah at para No.9 reveals that Smt. Ashwini and others filed a suit in O.S. No. 164/2013 in respect of property bearing Sy. No. 356 measuring 4 acres 34 guntas and the said case was also decreed by the Judgment and Decree dated 30.04.2015. The last sentence in the said paragraph reads as *“the reference case is pending for disbursement of compensation to the right persons”*. If this contention is accepted, then it is clear that the reference made by the LAO under Sections 30 and 31 of Land Acquisition Act for apportionment of compensation is still pending between DHRs and others. When such is the case, certainly the DHRs are not entitled to file

this Execution Petition and as per the award, the DHRs are entitled to receive the compensation subject to disposal of all the civil suits as well as land acquisition proceedings under Sections 30 and 31 of Land Acquisition Act. Further the objector in the objection statement claimed that the Judgment and Award passed in L.A.C. No.39/2016 has been challenged before the Hon'ble High Court of Karnataka in MFA No.915/2023. Admittedly, in L.A.C. No. 39/2016 the reference under Section 18 of the Land Acquisition Act has been decided. When the said finding has been challenged certainly this Execution Petition is not maintainable during pendency of the said case as the award is specific that the DHRs are entitled to receive the compensation after disposal of the reference under Sections 30 and 31 of Land Acquisition Act as well as Judgment and Decree in the civil suits. The decree holders have not placed any material to show that the reference under Sections 30 and 31 of Land Acquisition Act has been decided and decision is reached finality. Hence, this Court is of the humble opinion that the JDr has made out sufficient grounds that the Execution Petition at this juncture is not

maintainable till disposal of the civil suits as well as disposal of reference under Sections 30 and 31 of Land Acquisition Act. Accordingly, the above point is answered in the affirmative and proceed to pass the following:

ORDER

Objection filed by the JDr is hereby accepted.

Consequently this Execution Petition is dismissed with a liberty to file a fresh Execution Petition after disposal of civil suits and the decision in the reference made under Sections 30 and 31 of Land Acquisition Act as well as disposal of MFA No.915/2023.

(PADMA PRASAD)
II Addl. City Civil and Sessions Judge,
& Spl. Judge, Bengaluru.